

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 08/26/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Horwich – Trust; 30-2018-01045532	Motion to Quash The court does not provide a tentative ruling on Respondent Holly M. Emge's Motion for Order Quashing Service of Civil Subpoena for Personal Appearance or Alternatively for Protective Order on Production of Documents (ROA 2253) as it wishes to hear from the parties on certain issues as forth below. By her motion, Respondent Holly Emge seeks to quash a subpoena apparently calling for her to produce certain documents. However, neither the motion nor the supporting documents present the subject subpoena for the court's review. Accordingly, the court cannot address moving party's assertion that the subpoena was not properly served or that the requested documents are protected by the attorney work product doctrine and/or the attorney-client privilege. Moving party should be prepared to address the absence of this critical document. Further, the caption of the motion shows the hearing date on the motion to quash as September 9, 2026, while a court stamp above the caption shows the hearing date as today's date. Moving party should be prepared to address which date the parties were given notice of. Finally, on August 6, 2026, Judge Rowe ordered Robert Horwich "to authorize the release of all

		billing statements regarding money paid from the trust or concerning trust litigation from Brower Law Group, Greenberg Gross, and Holly Emge, Esq. to be given to Jeffrey Horwich.” (ROA 2303, emphasis added.) The parties should be prepared to address whether that order addresses, in any fashion, the instant motion to quash.
2	Rayhan – Other Probate; 30-2024-01401950	Continued to 09/09/2026 at 09:00 AM in Department CM08.
3	Turner – Trust; 30-2025-01532996	
4	Katz - Probate; 30-2022-01251727	
5	Finnegan – Conservatorship; 30-2019-01047364	
6	Rash – Guardianship; 30-2019-01057498	Notice of Withdrawal filed 08/11/2026 (ROA 199).
7	Hardcaste – Trust; 30-2024-01405208	Motions to Compel (3) and Motion to Deem Admitted I. Petitioner Jan Reagan’s Motion to Compel Responses to Form Interrogatories Propounded on Respondent Gregory Arthur (ROA 90) Code of Civil Procedure § 2030.290 states, in part, “If a party to whom interrogatories are directed fails to serve a timely response, the following rules apply: . . . [¶] (b) The party propounding the interrogatories may move for an order compelling response to the interrogatories.” On February 23, 2026, Petitioner served form interrogatories on Respondent. Responses were due March 30, 2026. Respondent did not provide

	timely written responses or request additional time in which to respond. This motion, filed May 13, 2026, followed. On June 16, 2026, Respondent served written responses to the form interrogatories. Accordingly, the motion is DENIED as moot. However, Petitioner’s accompanying request for sanctions is GRANTED in the amount of \$1,350 (3 attorney hours at \$450 per hour). Sanctions are to be paid within 30 days of this order. II. Petitioner Jan Reagan’s Motion to Compel Responses to Special Interrogatories Propounded on Respondent Gregory Arthur (ROA 93) Code of Civil Procedure § 2030.290 states, in part, “If a party to whom interrogatories are directed fails to serve a timely response, the following rules apply: . . . [¶] (b) The party propounding the interrogatories may move for an order compelling response to the interrogatories.” On February 23, 2026, Petitioner served special interrogatories on Respondent. Responses were due March 30, 2026. Respondent did not provide timely written responses or request additional time in which to respond. This motion, filed May 13, 2026, followed. On June 16, 2026, Respondent served written responses to the special interrogatories. Accordingly, the motion is DENIED as moot. However, Petitioner’s accompanying request for sanctions is GRANTED in the amount of \$1,350 (3 attorney hours at \$450 per hour). Sanctions are to be paid within 30 days of this order. III. Petitioner Jan Reagan’s Motion to Compel Responses to Requests for Production Propounded on Respondent Gregory Arthur (ROA 92) Code of Civil Procedure § 2031.300 states, in part: “If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply: . . . [¶] (b) The party making the demand may move for an order compelling response to the demand.”
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	On February 23, 2026, Petitioner served requests for production on Respondent. Responses were due March 30, 2026. Respondent did not provide timely written responses or request additional time in which to respond. This motion, filed May 13, 2026, followed. On June 16, 2026, Respondent served written responses to the requests for production. Accordingly, the motion is DENIED as moot. However, Petitioner’s accompanying request for sanctions is GRANTED in the amount of \$1,350 (3 attorney hours at \$450 per hour). Sanctions are to be paid within 30 days of this order. IV. Petitioner’s Motion to Deem Admitted All Requests for Admission Propounded on Respondent Gregory Arthur (ROA 85) Code of Civil Procedure § 2033.250, provides, in part, “Within 30 days after service of the requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared” Code of Civil Procedure § 2033.280, states, in relevant part, “If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply: . . . [¶] (b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2033.010.)” On February 23, 2026, Petitioner served requests for admission on Respondent. Responses were due on March 20, 2026. Respondent did not timely serve responses and did not request an extension of time in which to respond. This motion, filed on May 13, 2026, followed. On June 16, 2026, a month after the motion was filed, Respondent served written responses, which appear to be substantially compliant with the statutory requirements. Accordingly, the motion is DENIED as moot. However, Petitioner’s accompanying request for sanctions is GRANTED in the amount of \$1,350 (3 attorney hours at \$450 per hour). (Code of Civ. Proc., § 2033.280(c). Sanctions are to be paid within 30 days of this order.
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		Petitioner is ordered to give notice.
8	Hall – Trust; 30-2026-01567948	Demurrer and Motion to Expunge Respondent Sabrina E. Louis’s Demurrer to Petition to Invalidate Will and Trust, etc. (ROA 4) is OVERRULED. As set forth below, the court desires further information from the parties on Respondent’s Motion to Expunge Lis Pendens (ROA 43). I. DEMURRER This proceeding arises from a petition filed October 8, 2025 by David Elijah Hall (Petitioner) concerning the Elijah Nathan Hall Separate Property Trust dated October 10, 2022 (Trust) and a related will. The petition asserts the Trust and related documents were the product of undue influence and/or a lack of capacity. Respondent demurs to the petition on the ground it is time-barred under Probate Code section 16061.8 and barred by the doctrine of laches. A. Probate Code section 16061.8 “A general demurrer will lie where the complaint “has included allegations that <i>clearly</i> disclose some defense or bar to recovery.” [Citations.] A demurrer can be used only to challenge defects that appear on the face of the complaint or from matters outside the pleading that are judicially noticeable. [Citations.] ‘To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action.’ [Citation.] The demurrer admits the truth of all material facts properly pleaded, including all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law.” (<i>Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.</i> (2024) 102 Cal.App.5th 281, 298–299.) “A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.”] (<i>Coalition for an Equitable Westlake/MacArthur Park v. City of</i>

Los Angeles (2020) 47 Cal.App.5th 368, 376, internal quotation marks and citations omitted.)

When a revocable trust becomes irrevocable upon the death of the settlor, the trustee must notify the beneficiaries of the trust and heirs of the deceased settlor. (Prob. Code, § 16061.7, subd. (a)(1) & (b).) The notification must contain certain specified information. (Prob. Code, § 16061.7.) When the notice satisfies the statutory requirements, any action to contest the trust must be filed within 120 days from the date the notice was served. (Prob. Code, §16061.8.)

Petitioner’s time-bar argument is based on her assertion that she served a fully compliant notice on November 12, 2024. In support of this assertion, Respondent submits a copy of her notice and asks the court to take judicial notice of it. The date and fact of service of the notice cannot be judicially noticed. (*Williams v. Wraxall* (1995) 33 Cal.App.4th 120, 130, fn. 7 [a court “cannot take judicial notice of the truth of hearsay statements in decisions or court files, including pleadings, affidavits, testimony, or statements of fact”].)

Accordingly, the demurrer could only be sustained if the petition disclosed service of a fully compliant notice on the asserted date. The petition does not reference the asserted notice. Accordingly, the demurrer is **OVERRULED** on this ground.

B. Laches

As a general rule “the existence of laches is a question of fact to be determined by the trial court in light of all of the applicable circumstances. . .” (*Miller v. Eisenhower Medical Center* (1980) 27 Cal.3d 614, 624; see *Brown v. Oxtoby* (1941) 45 Cal.App.2d 702 707 [“Laches is a question of fact, on the evidence, and each case becomes largely a law unto itself”].) “The defense of laches requires unreasonable delay plus either acquiescence in the act about which plaintiff complains or prejudice to the defendant resulting from the delay.” (*Johnson v. City of Loma Linda* (2000) 24 Cal.4th 61, 68, fns. omitted.) “Laches may be raised by demurrer,

but only if the complaint shows on its face unreasonable delay *plus* prejudice or acquiescence.” (*Conti v. Board of Civil Service Commissioners* (1969) 1 Cal.3d 351, 362.) The petition does not make either of the required showings. The demurrer is **OVERRULED** on this ground.

The demurrer is **OVERRULED**.

II. MOTION TO EXPUNGE

On or about December 18, 2025, Petitioner allegedly served Respondent with a *lis pendens* on certain real property. By this motion, Respondent seeks to expunge the *lis pendens*. A *lis pendens* must be expunged if: (1) the pleading on which the *lis pendens* is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of the real property claim(s) by a preponderance of the evidence. (Code of Civ. Proc., §§ 405.31 and 405.32.) The party opposing a motion to expunge has the burden of showing both the existence of a real property claim and the probable validity of that claim. (*Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647; Code of Civ. Proc., § 405.30.)

A “real property claim” is one which, if meritorious, would affect title to, or the right to possession of, specific real property; or the use of an easement identified in the pleading. (Code of Civ. Proc., § 405.4.) The allegations of the petition determine whether a “real property claim” is involved; no independent evidence is required. (*Urez Corp. v. Superior Court* (1987) 190 Cal.App.3d 1141, 1149.)

Here, the petition seeks to invalidate a trust. If the trust holds real property, the attempt to invalidate the trust asserts a real property claim. “The trustee of a trust holds title to real property. Unlike a corporation, a trust is not a legal entity. Rather, a trust is a fiduciary *relationship* with respect to property. When property is held in trust, there is always a divided ownership of property, generally with the trustee holding legal title and the beneficiary holding equitable title. Trusts do not

	own property; trustees do.” (<i>Newell v. Superior Court</i> (2024) 107 Cal.App.5th 728, 736–737.) However, it is impossible to determine from the petition and/or the Trust attached thereto, whether the Trust holds any real property. The initial paragraphs of the Trust (attached as Exhibit B to the petition) state the settlor has placed his “interest in the property described in Schedule A” into the Trust. However, no Schedule A is attached to the Trust submitted to the court as Exhibit B. Section 2.04 of the Trust addresses retained use of residential properties but does not identify any property held in trust. To further complicate matters, no party has placed the subject lis pendens before the court or even identified the real property subject to the lis pendens. And although Respondent argues the lis pendens should be expunged because the notice was filed in the incorrect court, bears an improper case number, and was not properly served, Respondent did not submit the notice or any document showing the purported service. (The motion asserts the Notice of Lis Pendens with attached proof of service is attached thereto as Exhibit A. Exhibit A, however, is two largely blank pages.) Petitioner should be prepared to address the court’s concerns as to whether the petition asserts a real property claim. Respondent should be prepared to address the court’s concerns regarding the failure to provide the lis pendens that is the subject of the motion, specify the property allegedly subject to the lis pendens, or provide the allegedly defective notice of the lis pendens.
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9	Ravera – Conservatorship; 30-2020-01139584	
10	Iribarne – Other; 30-2025-01537079	Demurrer Respondent Carmencita Jimenez Iribarne’s Demurrer to Garbriel A. Iribarne’s Petition for Order for Recovery of Property and Imposition of Constructive Trust Under Probate Code § 850 (ROA 28) is OVERRULED. On December 31, 2025, Petitioner Gariel A. Iribarne, co-administrator of the Estate of Ricardo Raul Iribarne (Decedent), filed a petition regarding certain real property and other assets alleged to be part of the estate. The petition seeks recovery of the alleged estate assets under Probate Code § 850 or, in the alternative, imposition of a constructive trust. Respondent demurs to the petition on the ground that the real property addressed in the petition was held in joint tenancy by Decedent and Respondent and the joint tenancy was never severed, so the petition’s claim to the real property must fail. As an initial matter, the court exercises its discretion to consider Petitioner’s untimely opposition. Because Respondent filed a substantive reply to the opposition, the court finds no prejudice from the defects and deems any objection thereto waived. (<i>Felisilda v. FCA US LLC</i> (2020) 53 Cal.App.5th 486, 492–493; Cal. Rules of Court, rule 3.1300(d).) The petition claims estate ownership of property beyond just the real property addressed in the demurrer. (Petition [ROA 1] at ¶¶ 2, 3, 119 and Prayer at 34:25-35:4.) “Ordinarily, a general demurrer does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the demurrer will be overruled.” (<i>Spencer v. City of Palos Verdes Estates</i> (2023) 88 Cal.App.5th 849, 861; see <i>Southern California Pizza Co., LLC v. Certain Underwriters at Lloyd’s, London</i> (2019) 40 Cal.App.5th 140, 154 [“[a] demurrer must dispose of an entire cause of action to be sustained”]; and Code Civ. Proc., § 430.50(a) [“A demurrer to a complaint . . . may be

		taken to the whole complaint . . . or to any of the causes of action stated therein”].) Because Respondent’s demurrer addresses only a portion of the claims, i.e. ownership of the real property, it does not seek to dispose of an entire cause of action and must be OVERRULED. In making this ruling, the court makes no determination regarding Petitioner’s claim to the specified real property. Petitioner is directed to give notice.